

Court No. - 37

Case :- WRIT - C No. - 46523 of 2012

Petitioner :- Chandra Kanti Rai

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Shri Mahboob Ahmad, learned counsel for the respondents prays for and is allowed time to obtain instruction.

As prayed, put up this case on Tuesday i.e. on 18th September, 2012 as fresh.

Order Date :- 13.9.2012

S.Prakash

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Respondent :- State Of U.P. Thru Secy. And Others

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Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad appearing for respondents No.3, 4 and 5.

By this writ petition, the petitioner has prayed for quashing the citation dated 10th July, 2012 issued for recovery of an amount of Rs.1,09,811/- against the petitioner as electricity dues.

The submission is that the said recovery citation has been issued without there being any final assessment in accordance with the provisions of the U.P. Electricity Supply Code, 2005.

Learned counsel for the respondents after obtaining instructions submits that in view of the circular dated 30th June, 2012 of the U.P. Power Corporation a decision has been taken to recall the recovery for reconsideration. He has produced the copy of the letter dated 7th September, 2012 issued by the Executive Engineer to the Incharge Officer (Collection), Collectorate, Allahabad.

In view of the action taken by the respondents, we are of the view that sufficient ground has been made out for setting aside the citation dated 10th July, 2012. The recovery citation dated 10th July, 2012 is hereby set-aside. It is, however, open for the respondents to take fresh steps for recovery after making assessment in accordance with law.

The writ petition is disposed of accordingly.

Order Date :- 18.9.2012

Rakesh